

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

North Valley District, San Fernando Courthouse, Department K

24CHLC00669

**LVNV FUNDING LLC vs ADRIAN A ALCALA, AN
INDIVIDUAL**

October 14, 2025

4:04 PM

Judge: Honorable Michael J. O'Gara
Judicial Assistant: M. Henderson
Courtroom Assistant: None

CSR: None
ERM: None
Deputy Sheriff: None

APPEARANCES:

For Plaintiff(s): No Appearances

For Defendant(s): No Appearances

NATURE OF PROCEEDINGS: Court Order

The Court issues the following order on the submitted default judgment packet:

The request for default judgment is DENIED.

A debt buyer cannot obtain a default judgment under Code of Civil Procedure section 585 merely by submitting a declaration from the current debt holder. A declaration under Civil Code section 1788.60, executed by the debt buyer, is insufficient to authenticate the records of the original creditor. Code of Civil Procedure section 585 requires that any declaration be based on the declarant's firsthand knowledge of their own business records, not the records of another entity. Civil Code Section 1788.60 (a) provides that no default or other judgment may be entered against a debtor unless business records, authenticated through a sworn declaration, are submitted by the debt buyer to the court to establish the facts.

Here, the records offered from the original creditor constitute hearsay because they are presented by the debt buyer without any sworn declaration from the original creditor or other competent witness. The original creditor's records may only be admitted under the business records exception if accompanied by testimony, or a sworn declaration, from a witness with knowledge of how those records were prepared and maintained. A debt buyer cannot cure this evidentiary deficiency by relying solely on its own declaration. (See Civ. Code, section 1788.60, subds. (b)–(c).)

Further, Civil Code section 1788.60(c) mandates that if the debt buyer has not satisfied the evidentiary requirements set forth in the Fair Debt Buying Practices Act, the court must not enter a default judgment and may dismiss the action. Section 1788.60(d) expressly provides that, except as stated in that title, the statute does not alter or amend the procedures established under Code of Civil Procedure section 585. Plaintiff has failed to provide competent, admissible evidence sufficient to support entry of judgment, the request for default judgment is DENIED

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without prejudice.

Certificate of Mailing is attached.